

London County Council (Money) Act, 1958

6 & 7 ELIZ. 2 Ch. xxvii

ARRANGEMENT OF SECTIONS

Section

1. Short title and construction.
2. Interpretation.
3. Expenditure on capital account during financial period 1958-1959.
4. Loans to bodies and persons during financial period 1958-1959.
5. Amount of further expenditure and loans which Treasury may authorise in case of insufficiency.
6. ~~Saving.~~

SCHEDULE:

- Part I—Estimated requirements for capital expenditure.
Part II—Amounts estimated to be required for loans.
Part III—Expenditure or loans which may be authorised by the Treasury beyond amounts specified in Parts I and II of this schedule.

“ the following six months ” means the period from the first day of April nineteen hundred and fifty-nine to the thirtieth day of September nineteen hundred and fifty-nine both dates inclusive;

“ the principal Act ” means the London County Council (Loans) Act 1955; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1958-1959 the Council may under the powers of section 4 (Capital expenditure of Council) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure
on capital
account
during
financial
period
1958-1959.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall be sums which except as by the principal Act otherwise provided shall not exceed as regards the financial year those mentioned in the fifth and sixth columns respectively and as regards the following six months those mentioned in the seventh and eighth columns respectively of Part I of the schedule in relation to the said purposes respectively.

4.—(1) The bodies and persons to whom the Council may under the powers of section 5 (Loans by Council) of the principal Act lend money during the financial period 1958-1959 and who may under those powers borrow from the Council during that financial period shall be the bodies and persons mentioned in the first column of Part II of the schedule.

Loans to
bodies and
persons during
financial
period
1958-1959.

(2) The sums which may be so lent and borrowed shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of the said Part II in relation to such bodies and persons respectively.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Surplus or insufficiency of sums authorised to be expended or lent) of the principal Act to expend on capital account or to lend during the financial period 1958-1959 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Amount of
further
expenditure
and loans
which
Treasury
may authorise
in case of
insufficiency.

Saving.

6. It shall not be lawful for the Council to exercise for the purposes mentioned in the foregoing provisions of this Act the powers of borrowing conferred by the principal Act otherwise than in compliance with the provisions for the time being in force of any orders made under section 1 of the Borrowing (Control and Guarantees) Act 1946 and nothing in this Act shall be deemed to authorise a metropolitan borough council to borrow money otherwise than in compliance with those provisions.

9. London County Council (General Powers) Act 1937	Acquisition of property and execution of works in connection with improvements at Notting Hill-gate and the Western- avenue extension between Edgware-road and Marylebone-road	2,107,000	660,000	87,500	7,500	50,000	62,500
10. Green Belt (London and Home Counties) Act 1938 Open Spaces Act 1906 and various Acts relating to parks open spaces gardens public walks and pleasure grounds	Contributions towards the green belt scheme provision and lay-out of additional open spaces and other purposes	*	—	220,000	130,000	110,000	37,500
11. London County Council (Tunnel and Improve- ments) Act 1938	Acquisition of property and execution of works for the improvement of the southern approach to Wandsworth Bridge and for the duplication of Blackwall Tunnel	†3,933,250	310,000	25,000	75,000	12,500	50,500
12. London County Council (General Powers) Act 1939	Acquisition of property and execution of works for the improvement of the south bank of the river Thames	†1,702,000	1,300,000	—	1,400	—	—
13. London Government Act 1939	Completion of North and South Blocks County Hall Extensions and alterations to supplies depots and provision of equipment Preservation of historic buildings	* * *	— — —	— — —	88,000 20,500 1,000	— — —	5,000 20,000 1,000
14. Education Acts 1944 to 1953	Acquisition of sites execution of works provision and equipment of schools and other purposes	*	—	550,000	4,950,000	300,000	2,475,000
	Carried forward			1,511,750	8,055,150	735,000	3,967,700

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March 1959		Estimated requirement for half-year ending 30th September 1959	
		Total parliamentary estimate (3)	Expenditure to 31st March 1958 (approximate) (4)	Lands (5)	Works (6)	Lands (7)	Works (8)
		£	£	£	£	£	£
15. National Health Service Acts 1946 to 1952	Brought forward ... Acquisition and adaptation of property provision of and alterations to health centres day nurseries etc. and provision of equipment and vehicles ...	*	—	1,511,750	8,055,150	735,000	3,967,700
16. Town and Country Planning Acts 1947 to 1954	Acquisition of property compensation and execution of works ...	*	—	25,000	47,000	6,500	33,000
17. Fire Services Act 1947 ...	Acquisition of property and rebuilding of fire stations ...	*	—	1,354,000	125,000	469,000	65,000
18. London County Council (General Powers) Act 1947	Erection of concert hall and incidental works	*	—	50,000	81,300	20,000	42,500
19. National Assistance Act 1948	Acquisition of property improvements adaptations erection and equipment of premises and other purposes ...	*	—	—	22,800	—	—
				20,000	286,000	8,000	158,500

20. Children Act 1948 ...	Acquisition of property improvements adaptations erection and equipment of residential homes and nurseries and after-care hostels	*	—	44,400	100,600	—	77,840
21. London County Council (General Powers) Act 1948	Acquisition of land for improvements at Brompton-road and High Holborn ...	1,712,500	140,000	26,250	4,250	40,000	—
22. Housing Acts 1949 and 1957 and other Acts relating to housing	Acquisition of property erection of dwellings provision of hostel accommodation and other purposes	*	—	2,219,000	15,825,000	1,000,000	6,750,000
23. Public Works (Festival of Britain) Act 1949	Acquisition of land etc. arising out of the Festival of Britain 1951	*	—	1,000	—	500	—
24. London County Council (Crystal Palace) Act 1951	Preliminary expenditure in connection with proposed National Youth and Sports Centre	*	—	—	60,000	—	24,000
25. Town Development Act 1952	Acquisition of property erection of dwellings and other purposes	*	—	50,000	200,000	50,000	200,000
26. London County Council (General Powers) Act 1956	Remedial works in connection with subsidences in the metropolitan borough of Woolwich	*	—	—	20,000	—	—
				30,128,500		13,647,540	
	Carried forward ...			30,128,500		13,647,540	

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March 1959		Estimated requirement for half-year ending 30th September 1959	
		Total parlia- mentary estimate (3)	Expenditure to 31st March 1958 (approx- imate) (4)	Lands (5)	Works (6)	Lands (7)	Works (8)
27. Any Act	Brought forward ... To provide for possible further expenditure for purposes authorised by Parliament (whether before or during the financial period) for which it may be desirable that the Council should have spending power	£ —	£ —	£ 30,128,500	£ 250,000	£ 13,647,540	£ 225,000
				30,378,500		13,872,540	
				Carried forward	...	...	44,251,040

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes authorised by the same Act.

SCHEDULE—*continued*

PART II

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS

Brought forward £44,251,040

Bodies and persons to whom money may be lent (1)	During year ending 31st March 1959 (2)	During six months ending 30th September 1959 (3)
28. Metropolitan borough councils	£ 3,000,000	£ 1,500,000
29. Governors or managers of educational institutions including special and approved schools committees of school treatment centres governors or committees of voluntary hostels homes or other establishments and (for the provision of motor vehicles for official purposes) midwives employed by the Council or district nursing associations	45,000	22,500
30. Sundry persons or bodies of persons under the Housing Acts 1949 and 1957	1,000,000	500,000
31. Purchasers or lessees of land from the Council to assist them to develop such land	150,000	75,000
32. Councils of county districts being receiving districts for the purposes of the Town Development Act 1952	50,000	150,000
Total	4,245,000	2,247,500

£6,492,500

Carried forward £50,743,540

SCHEDULE—*continued*

PART III

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE

Brought forward £50,743,540

Purposes (1)	During year ending 31st March 1959 (2)	During six months ending 30th September 1959 (3)
33. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule respectively.	£ 2,000,000	£ 1,000,000
		£3,000,000
		<u>£53,743,540</u>

Table of Statutes referred to in this Act

Short title	Session and chapter
Borrowing (Control and Guarantees) Act 1946 ...	9 & 10 Geo. 6 c. 58.
London County Council (Loans) Act 1955 ...	4 & 5 Eliz. 2 c. xxvi.
London County Council (Money) Act 1957 ...	5 & 6 Eliz. 2 c. xix.

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 0d. net

PRINTED IN GREAT BRITAIN